

RESEARCH PAPER FOR INTERNATIONAL TOURISM LAW

The Importance of the Role of Social Media in the Tourism Sector

Introduction

This paper allows the discussion of whether media plays an important role in the tourism sector and what form of advantages or disadvantages that it may bring to the tourism industry. Social media certainly plays an important role in the tourism sector. This paper will argue that although there are implications of using social media excessively in the tourism industry, advantages that may be brought about certainly outweigh those repercussions.

The methods used by travellers in conducting research about places of interest have changed dramatically over the years. In the 21st century, individuals widely apply social media to gather information, seek recommendations, or distribute multimedia content about tourism suppliers and destinations.¹ In order to address travellers' needs and expectations, travel entities are constantly changing and redefining the way they market their services and products.²

In 2013, the World Travel and Tourism Council's economic impact report indicates that the tourism industry contributed to 9.5% of the global economy.³ This industry has grown faster than other significant industries, such as transport and manufacturing, retail and public services etc. The Nielsen 2013 survey shows that there is a significant increase of online advertisements usage, whereas newspaper advertisements regarding tourism in the United States had declined from 63% to 61%.⁴ 84% of consumers feel word-of-mouth recommendations as trustworthy, ranking as the highest percentage among the all forms of advertising.⁵

¹ Marianna Sigala, Evangelos Christou and Ulrike Gretzel, *Social Media in Travel, Tourism and Hospitality: Theory, Practice and Cases* (Ashgate Publishing Ltd, 2012) 7 [1].

² Geoffrey Holland, Kathryn Crossley and Wenee Yap, *Social Media Law and Marketing: Fans, Followers and Online Infamy* (Thomson Reuters, 2014) 4 [1.20].

³ World Travel & Tourism Council, 'WTTC Travel & Tourism Economic Impact 2014' (Research Report, World Travel & Tourism Council, 2014), 3 <<http://skift.com/wp-content/uploads/2014/03/world2014.pdf>>.

⁴ Stavey Santos, '2012 & 2013 Social Media and Tourism Industry Statistics' on Stavey Santos, *Sticky Media: Digital Travelling Agency* (February 2014) <<http://www.stikkymedia.com/blog/2012-2013-social-media-and-tourism-industry-statistics>>.

⁵ Nielsen, *Earned Advertising Remains Most Credible among Consumers; Trust in Owned Advertising on the Rise* (17 September 2013) <<http://www.nielsen.com/us/en/press-room/2013/nielsen--earned-advertising-remains-most-credible-among-consumer.html>>.

Discussion

I. Defining Social Media

Social media are Internet sites where people interact and communicate freely. Individuals are free to provide information, hold discussions, exchange multimedia contents or engage in live conversations.⁶ This form of media has become culturally entrenched and includes diverse online experiences such as Facebook, Twitter, TripAdvisor, YouTube etc,⁷ whereby Australia boasts of having the biggest social media team in the world.⁸ Being the world's biggest travel site, TripAdvisor provides trusted advice and a variety of travel choices. This application has more than 170 million reviews provided by travellers everywhere.⁹

The Australian Competition and Consumer Commission (ACCC) acknowledges that social media enables all forms of businesses to interact with customers directly and carry out promotions of their products and services in a cheaper and more efficient way.¹⁰ In Australia, there are no specific consumer laws or rules regulating the usage of social media. There are, however, consumer protection laws that corporations or travel agencies must conform to when making certain claims about their products or services, and these rules apply to social media. If the ACCC recognises that there has been a breach of law whereby businesses has breached consumer rights such as making false or misleading claims on social media, it will take court action against the wrongful party. For example, in *ACCC v DuluxGroup*,¹¹ the ACCC had instituted proceedings against Dulux for providing false and misleading paint advertising on social media.

⁶ Dr Anthony Curtis, *What is Social Media?* (2013) University of North Carolina at Pembroke <<http://www2.uncp.edu/home/acurtis/Courses/ResourcesForCourses/SocialMediaWhatIsIt.html>>.

⁷ David Rolph, Matt Vitins and Judith Bannister, *Media Law: Cases, Materials and Commentary* (Oxford University Press, 2010) 16 [1.3].

⁸ Australian Marketing Institute, *How Tourism Australia Became the World's Biggest Social Media Team* (2013) <http://www.ami.org.au/imis15/AMI/Information_Folder/How_Tourism_Australia_became_the_world_s_biggest_social_media_team.aspx>.

⁹ TripAdvisor, *Fact Sheet* (2014) <http://www.tripadvisor.com/PressCenter-c4-Fact_Sheet.html>.

¹⁰ Australian Competition & Consumer Commission, *Social Media* <<https://www.accc.gov.au/business/advertising-promoting-your-business/social-media>>.

¹¹ *Australian Competition and Consumer Commission v DuluxGroup (Australia) Pty Ltd* (Unreported, Federal Court of Western Australia, 6 December 2012).

II. Functions of Social Media

The widespread usage of Internet vitally affects the tourism platform as it is an information-based industry.¹² Tourism entities regard social media as an indispensable platform for the industry,¹³ and increasingly rely on it as an effective means for travellers to obtain information and share their travelling experiences.¹⁴ This paper will discuss the advantages of using social media in the tourism industry. Tourism marketers and entities use social media as a destination marketing tool, cheaper advertising and as a platform for interactivity and instant communication among consumers. On the other hand, consumers use social media as a faster and more efficient way to organise their vacation trips.

A. Organising Vacation Trips and Mobile Tourism

Due to the large amount of accessible information on the Internet, travellers increasingly use online searches, such as Google or Yahoo, to seek recommendations, find information and organise their vacations.¹⁵ Society is becoming more aware of the importance of having knowledge of the use of social media in tourism marketing practices.¹⁶ Before travelling, potential tourists often conduct research in order to collect sufficient information and ensuring a satisfactory vacation. Social media is seen as search engine friendly and search processes enable consumers to access relevant social media pages.¹⁷

Research shows that the most popular social media searches comprise of travel-related content, with TripAdvisor ranking the highest out of all forms of social media.¹⁸ Keywords such as “tourism”, “attractions” and “accommodations” are highly associated with virtual community sites, indicating that travellers more frequently access virtual communities to share their tourism experience.¹⁹ Furthermore, keywords such as “shopping” and “hotels” are more often found on consumer review sites.²⁰ Figure 1

¹² Gergely Ráthonyi, ‘Influence of Social Media on Tourism – Especially Among Students of the University of Debrecen’ (Scientific Paper No. 7, APSTRACT: Applied Studies in Agribusiness and Commerce, 7 July 2013) 105.

¹³ Nga Ling Chan and Basak Denizci Guillet, ‘Investigation of Social Media Marketing: How Does the Hotel Industry in Hong Kong Perform in Marketing on Social Media Websites?’ (2011) 28(4) *Journal of Travel and Tourism Marketing*, 345-68.

¹⁴ Carmen Cox et al., ‘The Role of User Generated Content in Tourists’ Travel Planning Behaviour’ (2009) 18(8) *Journal of Hospitality Marketing and Management*, 743-64.

¹⁵ Zheng Xiang, Ulrike Gretzel, ‘Role of Social Media in Online Travel Information Search’ (2010) 31(2) *Tourism Management* 179-88, [1].

¹⁶ Daniel R. Fesenmaier, ‘Introduction: Challenging Destination Promotion’ (2007) 46(1) *Journal of Travel Research* 3-4.

¹⁷ Pete Blackshaw and Mike Nazzaro, *Consumer-Generated Media (CGM) 101: Word-of-Mouth in the Age of the Web-Fortified Consumer* (2004) Intelliseek <http://www.brandchannel.com/images/papers/222_cgm.pdf>.

¹⁸ Xiang and Gretzel, above n 15, [5.1].

¹⁹ Ibid [5.2].

²⁰ Ibid.

(below) illustrates how potential travellers use search engines or social media that direct them to the relevant tourism websites and access all available services provided by the tourism businesses.

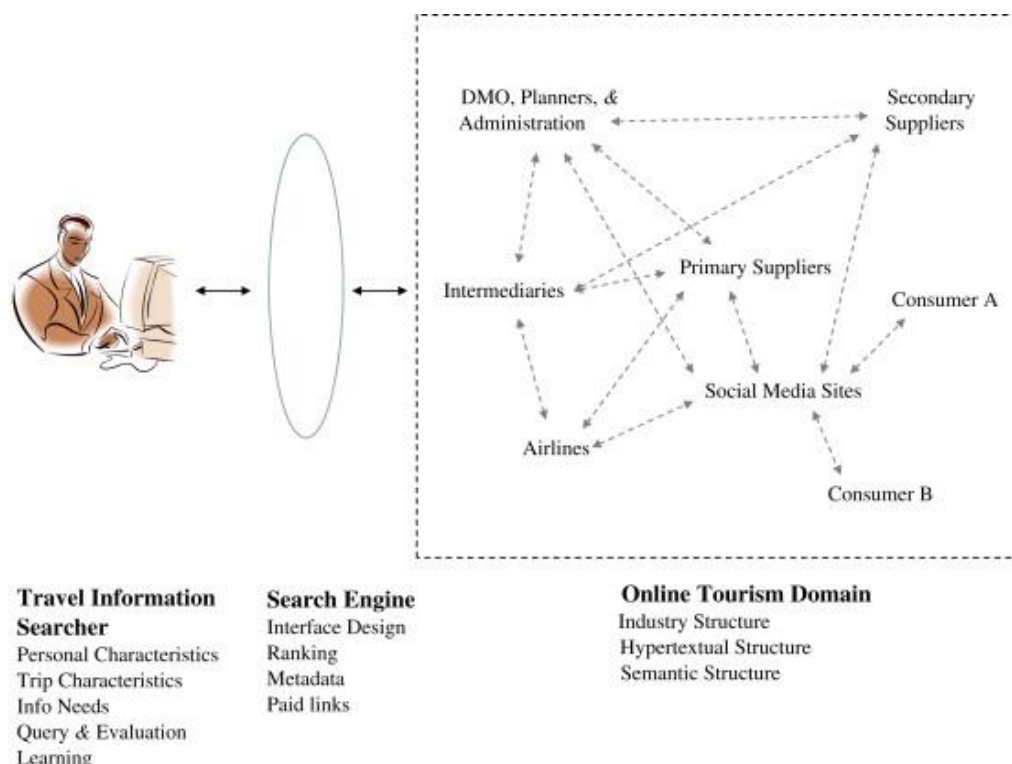


Figure 1 "Social media and tourism domain within the context of using a search engine" (Illustration taken from Xiang et al., 2010, adapted from Xiang et al., 2008)²¹

Consumers view the Internet as a trusted and independent source of information. Individuals are able to carry out their research anytime and anywhere, as long as there is an Internet connection. They are able to browse through different types of travel packages and make their own comparisons.²² Such methods are significantly cheaper and faster than going to a travel agency and obtaining brochures, agents' opinions and carrying out discussions about the person's requests. Individuals carrying out their own research online are generally more relaxed and stress-free during travelling, as they are generally able to gain a visual insight of the destination of interests, thus are better prepared for any uncertainties.²³

²¹ Zheng Xiang, Karl Wöber and Daniel R. Fesenmaier, 'Representation of the Online Tourism Domain in Search Engines' (2008) 47(2) *Journal of Travel Research* 137-50.

²² Travels in Virtuality, *The Advantages of Planning an Online Vacation* (2010-2014) <<http://www.travelsinvirtuality.com/the-advantages-of-planning-an-online-vacation.php>>.

²³ Ibid.

Furthermore, with mobile computing, travellers are able to search for information and make decisions anytime. Instead of needing access to information pamphlets to search for certain information, such as what time a restaurant opens for dinner or places to hail taxis, one is able to key in his question online and obtain answers immediately and effectively. Therefore, social media is able to attend to travellers' situational needs and maximise their comfort during vacations with minimum time and effort spent.²⁴ Mobile, social, location and communication-based technology have unarguably enhanced travellers' experiences to be more informational, enjoyable, spontaneous and social.²⁵

With social media, travellers are more empowered to carry out reservations with a shorter time, lower cost and higher convenience.²⁶ Ultimately, they have the freedom to plan the desired vacation by going through reviews and recommendations without needing to pay the cost of travel agents service fee. Most tourism agencies provide full packages, and some of the features in the packages may not be desired by every traveller.²⁷ However, there are some, especially those who do not have time to organise their trips, who still prefer accessing travel agency services. The advantage of travel agencies is that they generally ensure that everything required for travel is prepared and that their clients are able to travel in comfort.

B. Destination Marketing Tool and Advertising

Tourism entities are beginning to realise the prominent role social media plays as a destination marketing organisation marketing strategy.²⁸ Therefore, an increasing number of entities are using social media as a destination marketing tool by organising components to provide well-defined tourism services and products.²⁹ The Internet is able to provide opportunities to reach the market, understand customers' reaction and use any information obtained to further develop their businesses.³⁰ Since the development of social media, tourism businesses are able to introduce travel websites with the latest technologies to enable customers to collaborate and share their travelling experiences among fellow

²⁴ Carlos Lamsfus et al., 'Going Mobile: Defining Context for On-the-Go Travelers' (2014) *Journal of Travel Research* 1-11.

²⁵ Ulrike Gretzel and Tazim Jamal, 'Conceptualizing the Creative Tourist Class: Technology, Mobility and Tourism Experiences' (2009) 14(4) *Tourism Analysis* 471-81.

²⁶ Peter O'Connor, *Electronic Information Distribution in Tourism and Hospitality* (CAB International, 1999) ch 4.

²⁷ Travels in Virtuality, *Online Booking Versus Travel Agents* (2010-2014) <<http://www.travelsinvirtuality.com/online-booking-versus-travel-agents.php>>.

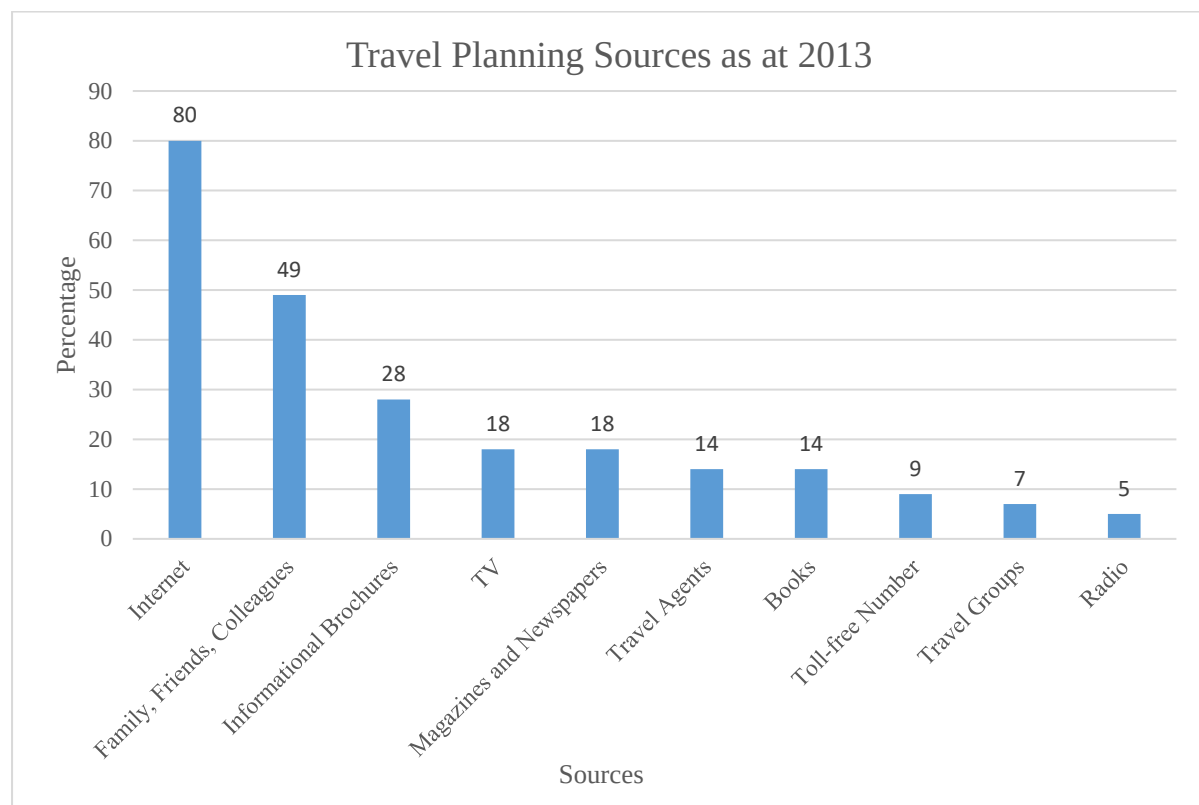
²⁸ Stephanie Hays, Stephen John Page and Dimitrios Buhalis, *Social Media as a Destination Marketing Tool: Its Use by National Tourism Organisations* (Routledge, 2012) 1.

²⁹ Ana Isabel Barros Pimentel Rodrigues, 'Tourism Engineering, Destination Marketing and Communication. Why?' (Paper presented at Tourism: State of the Art II Conference, Glasgow, 27-30 June 2004) [2.1].

³⁰ Ibid 106.

travellers. As travellers are more influenced by opinions, referrals and reviews made by fellow travellers, tourism businesses are compelled to resort to advertising via social media.³¹

From a marketing perspective, social media is one of the essential sites to gather and distribute information. Tourism entities therefore post advertisements in sites where there are reports of high number of online users and work to attract users' attention and endeavour to make them stay as long as possible.³² In websites such as VirtualTourist.com, Lonelyplanet.com and CouchSurfing.com, tourism entities are able to observe and analyse market trends and consumer preferences and needs without needing to conduct additional market research.³³ Social media may also be used to endorse tourism services or products and to maximise seat revenues.³⁴ As a result, entities save resources and time needed to market their products, as the number of consumers on the online community are increasing significantly, especially younger people.³⁵



³¹ Joana Miguéns, Rodolfo Baggio and Carlos Costa, 'Social Media and Tourism Destinations: TripAdvisor Case Study' (Paper presented at International Conference: Advances in Tourism Research, Aveiro, Portugal, 26-28 May 2008) 2.

³² Jin Young Chung and Dimitrios Buhalis, 'Information Needs in Online Social Networks' (2008) 10(4) *Information Technology & Tourism* 267-81, 271.

³³ *Ibid.*

³⁴ Pratibha A. Dabholkar, 'Consumer Evaluations of New Technology-based Self-service Operations: An Investigation of Alternative Models' (2011) 13 *International Journal of Research in Marketing* 29-51.

³⁵ Rosemary Thackeray et al., 'Enhancing Promotional Strategies within Social Marketing Programs: Use of Web 2.0 Social Media' (2008) 9(4) *Health Promotion Practice* 338-43, 339.

Figure 2 Data retrieved from "The 2013 Traveller".³⁶

Figure 2 (above) shows consumers' preferences as a travel planning source. In a survey conducted by Google Traveler Study, 80% of participants stated that they use the Internet as a travel planning source. On the other hand, the usage of radio as a travel planning source is almost obsolete. 28% of the participants stated that they still use informational brochures, and 14% rely on travel agents. With the high number of Internet users, tourism marketers are able to connect to a major part of the community and promote their services and products effectively.

With the current economic recession, businesses are losing elements for advertisement funding.³⁷ In an effort to reduce costs, tourism entities have no option but to reduce expenditures for advertising and marketing.³⁸ For example, VisitBritain had to close 13 overseas offices and cut jobs as a result of losing 34% of government funding.³⁹ As such, an increasing number of tourism businesses are creating social media networks for marketing and advertising without costs.⁴⁰ Marketers are using the Internet platform as an essential promotional tool, taking into account their marketing goals and objectives, resources for advertising and promotion and consumer preferences.⁴¹

Advertisers now view social media advertising as an integrated, cross-platform tactic.⁴² In order to operate successfully and establish long-term relationships, tourism entities must provide up-to-date information on travel-based websites that they are managing.⁴³ By carrying out an analysis of customers' comments and reviews on webpages, tourism entities are able to monitor and gain a better understanding of their customers' preferences and dislikes. Furthermore, evaluating competitors' strengths and weaknesses can help various entities to improve on their services and products.⁴⁴

³⁶ Google Traveler Study, *The 2013 Traveler* (November 2013) <http://ssl.gstatic.com/think/docs/2013-traveler_research-studies.pdf>.

³⁷ Hays, Page and Buhalis, above n 28, 3.

³⁸ Marc Davis, *The Impact of Recession on Business* (2014) Investopedia <<http://www.investopedia.com/articles/economics/08/recession-affecting-business.asp>>.

³⁹ James Meikle, 'VisitBritain Tourism Agency to Cut Jobs', *The Guardian* (online), 9 February 2011 <<http://www.theguardian.com/uk/2011/feb/09/visitbritain-tourism-agency-cut-jobs>>.

⁴⁰ Tourism & More, *Using the Social Media for Tourism* (December 2011) <<http://www.tourismandmore.com/tidbits/using-the-social-media-for-tourism/>>.

⁴¹ Thackeray et al., above n 35, 339.

⁴² Nielsen, *The Paid Social Media Advertising Report 2013* (25 January 2013) <<http://www.nielsen.com/us/en/insights/reports/2013/the-paid-social-media-advertising-report-2013.html>>.

⁴³ Malcolm Beith, 'Living like Locals', *Newsweek (Atlantic ed.)* (online), 18 April 2004 <www.newsweek.com/living-locals-125115>.

⁴⁴ Dimitrios Buhalis, Daniel Leung, Rob Law, 'eTourism: Critical Information and Communication Technologies for Tourism Destinations' in Youcheng Wang and Abraham Pizam (eds), *Destination Marketing and Management: Theories and Applications 2011* (CAB International, 2011) 205-224.

C. Interactivity and Communication

With social media, tourism businesses can easily communicate with potential customers without having to resort to intermediaries such as tour operators or travel agents to share their information.⁴⁵ Unlike most traditional media outlets, social media serves as a two-way communication between consumers and providers.⁴⁶ Although it does not work as a primary advertising tool, entities are able to create or maintain relationships between them and consumers.

As an electronic marketplace, social media allows interaction that maximises opportunities for both the entities and customers.⁴⁷ Entities can reach customers all over the globe in a cost-effective way and engage in direct dialogues with their customers. Ultimately, interaction on social media in regards to tourism products becomes a more individual-based activity. By hosting and managing websites, entities are able to answer questions, handle any conflicts or problems or quickly dismiss any rumours or false statements that may possibly damage reputation.⁴⁸ Marketers are also able to increase society's awareness about the services and products that they are providing, encourage interaction between customers, provide constructive feedback and distribute promotional items.⁴⁹

Interaction on social media often occurs on a personal level,⁵⁰ where entities directly ask online users questions in regards to their products or services, or request feedback or input.⁵¹ For example, a post by German National Tourism Board asking "What is your favourite sausage?" had obtained a high level of responses.⁵² Sites like Facebook allows users to interact through commenting, like, vote or comment on posts, share information or promotion deals and engage in active discussions.⁵³ This results in a strong sense of community, especially where users are allowed to create their own posts and share their own experiences on the tourism businesses' pages.

Furthermore, tourism entities are allowed to engage their customers directly in the creative process.⁵⁴ Instead of being passive recipients, customers are able to participate actively in promoting the products and services, or provide constructive criticisms directly to entities. Social media acts as the

⁴⁵ Holland, Crossley and Yap, above n 2.

⁴⁶ Robyn Blakeman, *Integrated Marketing Communication: Creative Strategy from Idea to Implementation* (Rowman & Littlefield Publishers, 2nd ed, 2007) 259.

⁴⁷ Buhalis, Leung and Law, above n 44, 217.

⁴⁸ Ibid 260.

⁴⁹ Ibid.

⁵⁰ Stephanie Hays, Stephen John Page and Dimitrios Buhalis, 'Social Media as a Destination Marketing Tool: Its Use by National Tourism Organisations' (2013) 16(3) *Current Issues in Tourism* 211-39, 221.

⁵¹ Ibid 224.

⁵² Ibid 223.

⁵³ Ibid.

⁵⁴ Thackeray et al., above n 35, 340.

digital version of word-of-mouth,⁵⁵ whereby individuals are able to post descriptions and comments on social media as a conversational exchange. Being part of the creative process, customers have a higher likelihood of endorsing the products and services to their friends and families, which acts as a further benefit in a promotional sense to tourism entities.

III. Consequences and Implications of Using Social Media

There are, however, several implications of adopting social media as the main platform for advertising in the tourism industry. In 2012, AllTwitter reported that a study concluded 52% of individuals made changes in their travel plans after carrying out researches on their places of interests using social media.⁵⁶ The issue that should be raised is what had affected consumers to change their minds, which in turn had affected the loss of businesses for some tourism marketers. Moreover, another issue that should be raised is how social media had affected the traditional media, especially tourism entities in particular.

A. Defamation, Injurious Falsehood

There are certain individuals that may abuse their privileges of using social media. Tourism entities have to deal with issues such as defamation or injurious falsehood. There are different motivations for individuals who resort to producing misleading and harmful statements on social media. As such, the injured parties – usually tourism marketers, agencies, hotels' managements etc – are able to bring a cause of action, either defamation or injurious falsehood, against malicious parties.

Defamation

The Australian courts treat defamation as both crime and tort. In *Sim v Stretch*,⁵⁷ the House of Lords stated that in considering whether an individual had committed defamation, it is necessary to consider whether his statement had lowered the general estimation of "right-thinking members of society" of the plaintiff. If the plaintiff will be avoided by society as a result of defamatory statements, then the defendant will be liable.⁵⁸ Generally, all natural persons are able to sue for defamation in Australia.

⁵⁵ Bing Pan and John C. Crotts, *Theoretical Models of Social Media, Marketing Implications, and Future Research Directions* (Ashgate Publishing Ltd, 2012) 73-5.

⁵⁶ Shea Bennett, *The Impact of Social Media on Travel and Tourism* (27 June 2012) AllTwitter <http://www.mediabistro.com/alltwitter/social-media-travel-hospitality_b24679>.

⁵⁷ *Sim v Stretch* [1936] 2 All ER 1237.

⁵⁸ *Youssouppoff v Metro Goldwyn-Mayer Pictures Limited* [1934] 50 TLR 581; *Parmiter v Coupland* [1840] 6 M&W 105.

If a tourism business is a corporation, it will be entitled to sue for defamation in order to protect and vindicate their reputations.⁵⁹ However, the suing entity can only claim damages that are economical in nature.⁶⁰ Australia had enacted a uniform defamatory code stating that larger corporations, with the exceptions of corporations with less than 10 employees and not-for-profit groups, are unable to bring a cause of action for defamation.⁶¹ Therefore, corporations and businesses are more likely to bring a cause of action for torts of injurious falsehood, which is more difficult to prove than defamation.

Injurious Falsehood

Before bringing a claim of injurious falsehood against the contributor of the falsehood, the injured parties must satisfy a few requirements:⁶²

1. Defendant had made false statements about plaintiff's products/business;
2. Defendant must have publicised that false statement to a third party;
3. Defendant must have had malice when making the statement;⁶³
4. Plaintiff must have suffered actual damage as a result of defendant's false statement.

There are several examples of individuals making falsehood claims in an attempt to injure the plaintiff's businesses. In *Barrett v Associated Newspapers (Limited)*,⁶⁴ the defendant had stated in the *London Daily Times* that the plaintiff's house was haunted. The jury had returned verdict in favour of the plaintiff as the defendant had published the statement maliciously and that the plaintiff had suffered actual damage as the statement preventing him from leasing his premises. Moreover, the jury stated that the defendant's statement was repugnant to common sense; therefore it was not necessary to have evidence of its falsehood.

In *Kaplan v Go Daddy Group*,⁶⁵ the defendant had falsely claimed that the plaintiff overcharged and had a poor management of business, and was complicit in theft of property. The defendant had

⁵⁹ *Metropolitan Saloon Omnibus Co v Hawkins* (1859) 157 ER 769 per Pollock CB; *Jameel v Wall Street Journal Europe SprL* [2007] 1 AC 359 at 372 per Lord Bingham of Cornhill; *South Hetton Coal Co Ltd v North-Eastern News Association Ltd* [1894] 1 QB 133 at 139 per Lord Esher MR, at 148 per Kay LJ.

⁶⁰ [2007] 1 AC 359 at 392 per Lord Hope of Craighead; *Andrews v John Fairfax & Sons Ltd* [1980] 2 NSWLR 225 at 254-56 per Mahoney JA.

⁶¹ *Defamation Act 2005* (NSW), (Qld), (Vic), (SA), (WA), (Tas) s 9(2)(b); *Defamation Act 2006* (NT) s 8(2)(b), *Civil Law (Wrongs) 2002* (ACT) s 121(2)(b).

⁶² *Ratcliffe v Evans* [1892] 2 QB 524 at 527-28 per Bowen LJ; *Palmer Bruyn & Parker v Parsons* (2001) 208 CLR 388 at 393 per Gleeson CJ, at 404, 407 per Gummow J.

⁶³ *White v Baycorp Advantage Business Information Services Ltd* (2006) 200 FLR 125 at 160 per Campbell J, SC (NSW).

⁶⁴ *Barrett v Associated Newspapers (Limited)* (1907) 23 TLR 666.

⁶⁵ *Kaplan v Go Daddy Group* [2005] NSWSC 636.

posted this on a website he hosted and invited disparaging comments from third parties. The court ruled in favour of the plaintiff.

Causes of Action

On the basis of “bane and antidote”, a defendant may argue that their posted contents do not bear defamatory meaning. Therefore, Alderson B stated that in order to consider whether the statements are defamatory, the jury should consider whether the statement had injured the plaintiff’s reputation.⁶⁶ The court will take into account the business or profession of the plaintiff.⁶⁷ If the published material is likely to diminish others’ opinion of the injured party, then the plaintiff is able to bring a case of defamation. Even if the statements do not disparage the plaintiff, if they are sufficient to reasonably cause society to shun and avoid the plaintiff, then the plaintiff may sue for defamation.⁶⁸

Certain entities that are unable to bring a claim for defamation pursuant to the Uniform Defamation Act are able to take action for injurious falsehood. However, unlike defamation, they must prove that there was actual damage or loss resulting from the false statement. It will be sufficient if the plaintiff can prove that there is a loss of business.⁶⁹ In *Seafolly v Madden*,⁷⁰ the Federal Court of Australia held that the plaintiff’s claim failed because the company was unable to establish that actual loss had occurred. The plaintiff is required to prove that the materials the defendant had published had caused real harm to the plaintiff.

It is essential, therefore, for tourism entities to monitor user-generated posts closely, in order to avoid legal liability. For businesses with an active user following on social media and regular interactions between both consumers and providers, profiles must be managed actively and effectively. Furthermore, posts regarding the entity’s competitors must not be false and must be validated.⁷¹ Productivity experts recommend designating certain times to respond to messages and carry out active monitoring.⁷²

⁶⁶ *Chalmers v Payne* (1835) 2 CM & R 158 at 159; (1835) 150 ER 67 at 68; *Morosi v Broadcasting Station 2GB Pty Ltd* [1980] 2 NSWLR 418n.

⁶⁷ *Radio 2UE Sydney Pty Ltd v Chesterton* [2009] HCA 16

⁶⁸ *Boyd v Mirror Newspapers Ltd* [1980] 2 NSWLR 449 at 452-53 per Hunt J.

⁶⁹ Holland, Crossley and Yap, above n 2, 157 [5.280].

⁷⁰ *Seafolly Pty Ltd v Madden* [2012] FCA 1346.

⁷¹ Holland, Crossley and Yap, above n 2, 164 [5.290].

⁷² *Ibid* [6.10].

B. Decreasing Employment for Travel Agencies and Operators

Before the introduction of Internet, individuals often engage in services by travel agents and tour operators.⁷³ Nevertheless, the presence of social media has influenced travellers to be more independent and flexible in organising their vacations, as they are able to access unlimited information virtually.⁷⁴ With travellers having the opportunity to exert more control during travel-making processes, the reliance on travel agencies and operators in organising trips are rapidly decreasing.⁷⁵ In 2003, German had approximately 14,000 tour operators and this number had decreased significantly since then. As of 2012, the total number of tour operators had fallen below 10,000.⁷⁶

As the travel market is becoming increasingly competitive, travel entities have to constantly keep up-to-date with public trends in order to market their products and services. Many operators are changing their approach in presenting themselves, thus using information technology in order to achieve competitive advantages.⁷⁷ Statistics show that the online travel booking revenue has increased up to 73% within the past 5 years, indicating that most of travellers carry out travel bookings online rather than contacting travel agencies when planning their trips.⁷⁸ Agencies that do not actively market themselves suffer a significant disadvantage compared to other agencies.

One of the methods of which tourism entities promote themselves is through creating Facebook fan pages, allowing them to effectively reach the public without resorting to expensive methods of advertising. Facebook users are also able to interact directly with those entities, share their experiences, give positive or negative reviews and even encouraging third parties to visit.⁷⁹ For example, TripAdvisor often analyse both positive and negative comments on its webpage. The consumer's reviews are monitored thoroughly in order to understand what factors may affect or improve the businesses. Several travel websites have also enabled tourists to share real-time contents among visitors.

Nevertheless, statistics show that 20% of tourism marketers in Australia have not hosted websites promoting themselves.⁸⁰ They do not have full understanding of the current technological

⁷³ Buhalis, Leung and Law, above n 44, 216.

⁷⁴ Dimitrios Buhalis, 'Strategic Use of Information Technologies in the Tourism Industry' (1998) 19 *Tourism Management* 409-421.

⁷⁵ Roland Schegg and Michael Fux, *Continued Growth of Online Travel Agencies (OTA): Results of an Online Survey on Hotel Distribution in Switzerland for 2012* (March 2013) eTourism-Monitor, 23 <http://etourism-monitor.ch/sites/default/files/downloads/distributionsumfrage2013_ch_referenzjahr_2012_e.pdf>.

⁷⁶ Tourism-Review, *Number of German Tour Operators is dropping* (3 June 2013) <<http://www.tourism-review.com/germany-number-of-tour-operators-is-decreasing-news3723>>.

⁷⁷ Buhalis, above n 74, 409.

⁷⁸ Rezdy, *Travel Statistics for Tour Operators* (2014) <<https://www.rezdy.com/resource/travel-statistics-for-tour-operators/>>.

⁷⁹ John Fotis, Dimitrios Buhalis, Nicos Rossides, 'Social Media Use and Impact during the Holiday Travel Planning Process' in *Information and Communication Technologies in Tourism 2012* (Springer Vienna) 13-24.

⁸⁰ Rezdy, above n 78.

world and thus fail to take opportunities to present themselves online. Some are concerned about the possible disadvantages that may be brought along with the usage of IT in the industry, such as unethical competitors, sharing of false and injurious information or the constant need to filter or maintain their websites. Furthermore, some marketers lack the necessary skills and resources in order to promote themselves online.⁸¹

In conclusion, social media severely affects the number of tourism businesses, the relationship being inversely proportional to each other. Tourism entities that do not use IT in the tourism industry generally suffer a significant disadvantage as there is an element of strategic vulnerability.⁸² To ignore the importance of social media will risk those marketers to become irrelevant in the tourism industry. It is likely that social media will completely replace traditional methods of research and sources of information in the future. Instead of obtaining recommendations or information from tourism agencies, individuals are now more likely to choose their next holiday destination by the photographs shared by friends and family on social media.⁸³

IV. Regulations and Codes of Conduct for Marketing

As the usage of social media in the tourism industry is relatively new, there are limited resources as to the codes and standards that both tourism marketers and consumers must comply with. In 2004, the United Nations held a conference on trade and development and worked up UNCTAD e-Tourism Initiative,⁸⁴ with the purpose of enabling developing countries to maximise their tourism potential. Countries are able to organise, promote and conduct sales of their tourist attractions. With proper incorporation of regulations into strategy development, the tourism sector will be able to assist countries integrate into the global economy.⁸⁵

The UNCTAD Initiative proposed that the tourism marketplace should contain certain information during online promotions.⁸⁶

1. The country's general information;

⁸¹ Robert Milano, 'The Effects of Online Social Media on Tourism Websites' (Paper presented at the 18th International Conference on Information Technology and Travel & Tourism, Innsbruck, Austria, 26-28 January 2011) 5.

⁸² Stephen Bradley, Jerry Hausman, Richard Nolan, 'Globalisation, Technology and Competition: The Fusion of Computers and Telecommunications in the 1990s' (Harvard Business School Press, Boston, Massachusetts, 1993).

⁸³ Sam Poullain, *Social Media Rules the Travel World* (24 April 2013) Skyscanner <<http://www.skyscanner.com.sg/news/social-media-rules-travel-world>>.

⁸⁴ São Paulo, *UNCTAD's e-Tourism Initiative*, GE.04-50994, 11th sess, UN Doc TD(XI)/BP/6 (26 April 2004).

⁸⁵ Ibid 2.

⁸⁶ Ibid 4.

2. Specific information about tourism services;
3. Information about local crafts; and
4. Website links of involved partnerships, associates and existing online information.

Many tourism agencies rely on legislations enacted by their countries' respective governments or local councils, for example: obtaining permits, licences to conduct tours and regulations that must be followed.⁸⁷ In Queensland, the Department of Public Works has produced "Official Use of Social Media Guideline".⁸⁸ The Department recommends that agencies should take certain precautions when using social media, including:⁸⁹

1. Suitability of specific social media tools to deliver the desired outcome;
2. Adopting security precautions;
3. Management, creation, access and closure of official social media accounts;
4. Monitoring;
5. Transparency when managing accounts;
6. Obtaining approval by CIO or the agency's delegate;
7. Providing account details in the agency register

Agencies are regarded as professionals when posting information or promoting themselves on social media. Therefore, comments that are posted through its official social media account represents the agency itself.⁹⁰

Any forms of marketing on social media such as advertisement or promotions are subject to consumer laws.⁹¹ Tourism marketers are required to comply with certain laws and standards, such as the *Australian Consumer Law*. Tourism entities must not engage in misleading or deceptive conduct in trade or commerce,⁹² and this applies to tourism entities which are also corporations.⁹³ As activities of tourism entities bear a "trading or commercial character", then their general commercial activity bear a commercial character,⁹⁴ and therefore must comply with provisions under the *Competition and Consumer Act*.

⁸⁷ Tourism Boost, *Licences and Regulations*, Small Business Development Corporation <<http://www.smallbusiness.wa.gov.au/TourismBoost/ensuring-business-success/regulations-and-protection/#licenses>>.

⁸⁸ Queensland Government Enterprise Architecture, *Official Use of Social Media Guideline* (December 2010) ICT Policy and Coordination Office, Department of Public Works <<http://www.qld.gov.au/web/social-media/policy-guidelines/guidelines/documents/social-media-guideline.pdf>>.

⁸⁹ Ibid 10.

⁹⁰ Ibid 8 [4.1]-[4.2].

⁹¹ Holland, Crossley and Yap, above n 2, 96 [3.250].

⁹² *Competition and Consumer Act 2010* (Cth) s 18(1).

⁹³ Ibid s 131.

⁹⁴ *Concrete Constructions (NSW) Pty Ltd v Nelson* (1990) 169 CLR 594.

In *Google Inc v ACCC*,⁹⁵ the High Court held that online advertising is to be regarded as any other forms of advertising. Social media online advertisers will be held responsible for any misleading or deceptive statements, including statements of competitors. Therefore, tourism entities are responsible for removing any false, misleading or deceptive posts on their promotion page as soon as they are aware of them.⁹⁶ On the other hand, consumers and users must comply with certain regulations or guidelines when posting on social media. They must not ignore any disclaimers made by the provider. If they abuse their privileges, then certain actions can be taken against them, such as: suspension of accounts or even lawsuits.⁹⁷ The wronged party may also seek civil remedies including injunctions and damages.

Furthermore, if an Australian connection is established (for domestic tourism) whereby services originates in Australia, schedule 7 of the *Broadcasting Services Act 1992* (Cth) is applicable. This legislation provides for a complaints-driven take-down cessation scheme for any contents uploaded on the media,⁹⁸ such as images, texts, data etc. If certain contents are found to be prohibited content, the Australian Communications and Media Authority (ACMA) will issue a take-down notice, service-cessation notice or link-deletion notice.⁹⁹ Websites or social media hosted by tourism marketers are considered to be commercial content services, and all material must be reviewed by trained content assessors as provided by Clause 8 of the *Content Services Code 2008*.¹⁰⁰

Conclusion

In conclusion, tourism entities using the Internet as marketing tools gain distinct advantages in their businesses, such as: revenue growth, development of marketing research and database, reducing expenses and attract and retaining an increasing number of customers.¹⁰¹ With the technological shift in social media, tourism entities are able to conduct researches in order to enhance their businesses. In order to optimise their marketing opportunities, tourism entities should study the changes in consumer behaviour and expectation and take innovative approaches accordingly.¹⁰²

⁹⁵ *Google Inc v Australian Competition and Consumer Commissioner* [2013] HCA 1. See also *Seafolly Pty Ltd v Madden* [2012] FCA 1346.

⁹⁶ *ACCC v Allergy Pathway Pty Ltd (No. 2)* [2011] FCA 74.

⁹⁷ [2005] NSWSC 636.

⁹⁸ *Broadcasting Services Act 1992* (Cth) Sch 7 cl 2.

⁹⁹ *Ibid* Sch 7 cls 47, 56 and 62.

¹⁰⁰ See also *Broadcasting Services Act 1992* (Cth) Sch 7 cl 81(1).

¹⁰¹ Alastair M. Morrison, Stephen Taylor, Alison J. Morrison and Allison D. Morrison, 'Marketing Small Hotels on the World Wide Web' (1999) 2 *Information Technology and Tourism* 97-113.

¹⁰² Jun (Nina) Shao, Mary Ann Dávila Rodriguez and Ulrike Gretzel, *Riding the Social Media Wave: Strategies of DMOs Who Successful Engage in Social Media Marketing* (Ashgate Publishing Ltd, 2012) 87.

The development of social media is still relatively new and its evolvement in the coming years is difficult to predict.¹⁰³ As its functionality is often shifting and revolutionising, tourism entities must constantly monitor the websites that they are hosting, as there are often introductions of new utilities and tools.¹⁰⁴ Furthermore, in order to maintain customers' attention, entities must consistently seek original and attractive ways to promote their products and carry out interactions. Entities must also be aware of any changes in law which affects the usage of social media. As there are an increasing number of social media disputes being brought forward to courts, it is with high likelihood that the governments will introduce legislations regulating the usage of social media,¹⁰⁵ especially there are frequent disputes as to copyright, breach of privacy, cyber-bullying, blackmail etc.

All in all, social media plays a crucial role in the tourism industry. On one hand, travellers are free to express themselves and share useful information or experience to which other travellers are able to refer to before making travel plans.¹⁰⁶ On the other hand, tourism entities have opportunities to develop and maximise their businesses through interaction with consumers. Although it is not possible to completely curb all possible disadvantages or risks that such usage may bring, the usage of social media brings about many positive changes in how businesses are conducted in the tourism industry. It is undeniably difficult, however, to find a solution that encourages cooperative and collaborative attitudes among online users. As such, entities must always bear in mind to conform to all copyright, broadcasting and consumer laws in order to avoid legal liability, as this may potentially damage their businesses and reputations.

¹⁰³ Holland, Crossley and Yap, above n 2, 172 [7.10].

¹⁰⁴ Ibid [7.40].

¹⁰⁵ Ibid [7.60].

¹⁰⁶ Ráthonyi, above n 12, 111.

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